

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.9959 of 2005

Zahidul Islam @ Jhantu
.... Convict-Petitioner

-Versus-
The State

.... Opposite Party
Mr. M.A. Muntakim, Advocate
.... For the convict- petitioner.
Mr. Sujit Chatterjee, D.A.G. with
Ms. Farhana Afroze Runa, A.A.G.
Mr. Md. Abdul Aziz Masud, A.A.G.
Mr. Md. Shamim Khan, A.A.G.
.... For the State.

With
Criminal Appeal No.4808 of 2003

Harun @ Harun Khan and another
.... Appellants

-Versus-
The State
None appears

.... For the appellants.
Mr. Sujit Chatterjee, D.A.G. with
Ms. Farhana Afroze Runa, A.A.G.
Mr. Md. Abdul Aziz Masud, A.A.G.
Mr. Md. Shamim Khan, A.A.G.
.... For the State.

Heard on 05.03.2024 and Judgment on 06.03.2024.

S M Kuddus Zaman, J:

This Rule was issued calling upon the opposite party to
show cause as to why the impugned judgment and order of

conviction and sentence dated 27.10.2003 passed by the Special Tribunal No.5, Satkhira in Special Tribunal Case No.28 of 1999 corresponding to G.R. Case No.231 of 1998 arising out of Satkhira Police Station Case No.01 dated 01.07.1998 convicting the petitioner and others namely Zahidul Islam @ Jhantu, Harun Khan, Emdadul Haque and Md. Moniruzzaman under Section 19A and 19(f) of the Arms Act and sentenced them to suffer rigorous imprisonment for 10 (ten) years should not be set aside and/or such other or further order or orders as to this Court may seem fit and proper.

Being aggrieved by above judgment and order of conviction and sentence dated 27.10.2003 passed by the learned Judge of Special Tribunal No.5, Satkhira in Special Tribunal Case No.28 of 1999 corresponding to G.R. Case No.231 of 1998 arising out of Satkhira Police Station Case No.01 dated 01.07.1998 convicted accused Zahidul Islam @ Jhantu preferred Criminal Miscellaneous Case No.9959 of 2005 under Section 561A of the Code of Criminal Procedure for quashment of above judgment and order of conviction of sentence dated 27.10.2003 and convict accused Harun @ Harun Khan and Md. Moniruzzaman @ Shovan

jointly preferred Criminal Appeal No.4808 of 2003 for setting aside above judgment and order of conviction and sentence.

Above Criminal Miscellaneous Case and Criminal Appeal were heard together and being disposed of by the single judgment.

Facts in short are that Sub-Inspector Jashim Uddin lodged an ejahar on 01.07.1998 at 23.0 hours stating that on 30.06.1998 at 23.15 hours about 10-12 persons sensing their presence attempted to flee and they arrested five persons namely Zahidul Islam @ Jhantu, Ilial Bhuiyan, Md. Harun Khan, Emdadul Haque and Moniruzzaman. On conducting body search of accused Moniruzzaman and accused Emdadul Haque he recovered two round of cartridge from the pocket of the trouser of each of above two accused persons. He also recovered one razor from the west of accused Md. Harun Khan and a toy pistol from the possession of accused Illius. At the showing of accused Zahidul disclosed a pipe gun was recovered from the drainage at Etagaca Banglar more.

He seized above gun and cartridges in presence of the witnesses and handed over above accused persons and seized alamats to the police station and lodged FIR of this case.

To bring home the charge leveled against the accused persons under Section 19A and 19(f) of the Arms Act the prosecution examined ten witnesses who were cross examined by the defence and tendered two whose cross examination was declained by the defence.

On consideration of the facts and circumstances of the case and evidence on record the learned Judge of the Special Tribunal No.5 convicted accused Zahidul Islam @ Jhantu and Harun Khan under Section 19A of the Arms Act and convicted accused Emdadul Haque and Moniruzzaman under Section 19(f) of the Arms Act and sentenced each of them to rigorous imprisonment for 10(ten) years as mentioned above.

As mentioned above to bring home the charge leveled against the accused persons the prosecution examined ten prosecution witnesses and tendered two.

PW1 Sub-Inspector Jashim Uddin is the informant of this case. He stated that on 30.06.1998 he was conducting sentry duty

along with his accompanying force accused Zahidul, Illius, Harun, Emdadul and Moniruzzaman attempted to flee sensing their presence. He along with his accompanying force apprehended above accused persons. On conducting body search he recovered two round cartridges from the pocket of trouser of accused Moniruzzaman and another two rounds of cartridges from the pocket of trouser of accused Harun. He recovered one toy pistol from the possession of accused Illius. He recovered one pipe gun from accused Zahidul. He seized above cartridges and pipe gun by dint of a seizure list and lodged FIR of this case. The witness proved the seizure list and FIR of this case and his signature on those documents as well as above seized pipe gun and cartridges which were marked as Exhibit Nos.1, 1/1, 2 and 2/2 and Material Exhibit No.A series respectively.

PW2 Ahammed Al Amin stated that he heard that one arm was recovered and police arrested some accused persons. In cross examination he stated that he was in Khulna at the time of the above occurrence and he cannot recollect from whom he heard of above occurrence.

PW3 Mst. Rashida Begum was tendered by the prosecution whose cross examination was declined by the defense.

PW4 Sree Bakul Kumar Dey stated that about two years back at 10.00/11.00 P.M. police told him that arms were recovered by them and asked him to give signature on a paper and he gave a signature. The witness proved his signature on the seizure list which was marked as Exhibit No.1/2. Above witness was declared hostile by the prosecution and cross examined. He denied that he was giving false evidence on the request of the accused persons.

PW5 Sheikh Shahidur Rahman is a member of the accompanying force of PW1 Jashim. He stated that on 01.07.1998 two cartridges were recovered from the possession of accused Emdad and another two cartridges from Moniruzzaman and one pipe gun was recovered from the possession of Zahidul. One toy pistol was recovered from the possession of accused Illius and from the possession of accused Harun one razor was recovered. In cross examination he stated that he does not know from where accused Zahidul was arrested. He does not know the accused persons of this case nor he knows wherefrom they were arrested.

He did not see the recovery of cartridges and pipe gun from the possession of the accused persons.

PW6 Md. Jahangir Alam stated that police arrested Zahidul and on the basis of his confession recovered a pipe gun from the government drain behind the furniture shop of Al Amin. Police also recovered two cartridges from accused Illius and Emdadul each. In cross examination he stated that he did not see the arrest of the accused person by the police and he did not see any of the accused persons except accused Zahidul in the place of occurrence. He further stated that no arms or cartridge was in the possession of the accused persons when they were arrested.

PW7 Nesar Uddin is a witness to the seizure list. He stated that he gave signatures on two seizure lists on 01.07.1998. The witness proved his signatures on above seizure list which were marked as Exhibit Nos.1/4 and 1/5 respectively. He further stated that he saw accused Zahidul Islam sitting in the car of the police with two pipe guns. This witness was declared hostile by the prosecution and cross examined. In cross examination he denied that police recovered cartridges and pipe guns from the possession of the accused persons. In his cross examination by the

accused persons the witness stated that he did not see the arrest of the accused person by the police nor he saw the recovery of arms and cartridges from the possession of the accused persons.

PW8 Nazrul Islam was tendered whose cross examined was declined by the prosecution.

PW9 Constable Abdul Hakim was a member of the accompanying force of PW1 Jashim who stated that they arrested five persons out of suspicion and recovered two cartridges from the pocket of the trouser of Moniruzzaman and another two cartridges from the pocket of trouser of accused Emdad. A toy pistol was recovered from accused Illius. At the showing of accused Jahid one pipe gun was recovered from the government drain behind the furniture shop of Al Amin. In cross examination he stated that he cannot recollect who arrested accused persons.

PW10 Sub-Inspector Md. Abdul Kader is another member of the accompanying force of PW1 Jashim. He stated that they arrested five accused persons but he cannot recollect the names of three accused persons. He could not say from which accused persons what gun or cartridge was recovered.

PW11 Md. Siddiqur Rahman verified the addresses of the accused persons pursuant to a slip issued by the Investigating Officer of this case. He stated that he did not find any person namely Harun Khan in Kalikabari village of Rampal Thana.

PW12 Sub-Inspector Ruhul Imam is the Investigating Officer of this case who stated that on conclusion of investigation of this case he found truth in the allegation brought against the accused persons and accordingly, he submitted a charge sheet. In cross examination he stated that the informant arrested five accused persons and recovered cartridges and toy pistol from the possession of four accused persons excepting Zahidul.

Above is all about the evidence oral and documentary adduced by the prosecution to prove the charge leveled against the accused persons under Section 19A and 19(f) of the Arms Act, 1878.

Mr. M. A. Muntakim, learned Advocate for accused petitioner Zahidul Islam @ Jhantu of Criminal Miscellaneous Case No.9959 of 2005 submits that in this case two seizure list witnesses namely PW4 Bakul Kumar Dey and PW7 Badrul Alam were examined by the prosecution but none of them has supported the

prosecution case of recovery of pipe gun from the possession of accused petitioner Zahidul. In fact no seizure list witness or public witness has supported the prosecution case. The accompanying police members of the petrol party of PW1 Jashim also gave contradictory evidence. As far as accused petitioner Zahidul Islam is concerned this is in fact of a case of no evidence. But the learned Judge of the Special Tribunal No.5, Satkhira failed to appreciate above materials on record properly and most illegally convicted him under Section 19A of the Arms Act and sentenced him thereunder to 10(ten) years rigorous imprisonment which is liable to be quashed.

No one appears on behalf of the appellants of Criminal Appeal No.4808 of 2003 preferred by Harun @ Harun Khan and Md. Moniruzzaman @ Shovan when the matter was taken up for hearing although the matter appeared in the list yesterday for hearing.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State submits that the recovery of a pipe gun at the showing of accused Zahidul from the government drain behind the furniture shop of Al Amin has been proved by legal evidence and the

learned Judge of the Tribunal has rightly convicted him under Section 19A of the Arms Act which calls for no interference.

As far as appellants Harun @ Harun Khan and Md. Moniruzzaman @ Shovan of Criminal Appeal No.4808 of 2003 are concerned the learned Deputy Attorney General concedes that he was unable to find sufficient legal evidence on record justifying the impugned judgment and order of conviction and sentence against them.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It has been alleged that PW1 Jashim Uddin arrested five accused persons on suspicion and recovered two rounds of cartridge from the pocket of trouser of accused Moniruzzaman and another two rounds of cartridge from the pocket of trouser of accused Emdadul. As far as the accused petitioner Zahidul Islam is concerned nothing was recovered from his possession. It has been alleged that subsequently and from a different public place at the showing of accused Zahidul Islam one pipe gun was recovered.

It turns out from the seizure list dated 30.06.1998 prepared by PW1 Jashim Uddin that one pipe gun was allegedly seized from inside a drain but there is no mention in above seizure list that above gun was recovered pursuant to the confession or showing of accused Zahidul.

As far as recovery of cartridges from the possession of accused Moniruzzaman and Emdadul are concerned the prosecution has examined two witnesses namely PW4 Bakul Kumar Dey and PW7 Badrul Alam. But none of them has corroborated the prosecution case of recovery of cartridges from the pocket of trouser of accused Emdadul and Moniruzzaman.

Moreover, PW2 Ahmad Al Amin and PW6 Jahangir Alam also did not support the prosecution version of the case of recovery of cartridges from the possession of accused Moniruzzaman and Emdadul.

It has been alleged by the PW1 Jashim that one toy pistol was recovered from the possession of accused Emdadul Haque but he has been convicted under Section 19(f) of the Arms Act and sentenced thereunder to rigorous imprisonment for 10(ten) years which is illegal and not tenable in law.

On consideration of above facts and circumstances of the case and materials on record we hold that this was in fact a case of no evidence against the convict petitioner Zahidul Islam @ Jhantu as well as appellants Harun @ Harun Khan and Md. Moniruzzaman @ Shovan but the learned Judge of the Special Tribunal No.5, Satkhira miserably failed to appreciate above materials on record properly and most illegally convicted accused Zahidul Islam @ Jhantu, Harun @ Harun Khan and Md. Moniruzzaman @ Shovan which is not tenable in law.

In above view of the materials on record we find substance in both Criminal Miscellaneous Case No.9959 of 2005 and Criminal Appeal No.4808 of 2003.

In the result, the Rules issued in connection of Criminal Miscellaneous Case No.9959 of 2005 is made absolute and Criminal Appeal No.4808 of 2003 is allowed.

The impugned judgment and order of conviction and sentence dated 27.10.2003 passed by the learned Judge of the Special Tribunal No.5, Satkhira in Special Tribunal Case No.28 of 1999 corresponding to G.R. Case No.231 of 1998 arising out of

Satkhira Police Station Case No.01 dated 01.07.1998 is hereby set aside.

Accused Zahidul Islam @ Jhantu, Harun @ Harun Khan and Md. Moniruzzaman @ Shovan are acquitted of the charge leveled against them under Sections 19A and 19(f) of the Arms Act and they are relieved of their respective bail bond.

Send down the lower Court's records immediately.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

*MD. MASUDUR RAHMAN
BENCH OFFICER*